



Notification Waiver Determination

Perun (TPG) - Zembl

Acquisition	Perun TopCo Pty Ltd and Perun BidCo Pty Ltd, which are newly incorporated entities controlled by funds managed and/or advised by affiliates of TPG Inc. (TPG), applied for a notification waiver in respect of their proposed acquisition of 100% of the shares and share options currently on issue in Zembl Pty Limited (together with its wholly owned subsidiaries, Zembl), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 September 2026

Parties to the Acquisition	TPG is a global alternative asset manager headquartered in the United States. TPG consists of six multi-product platforms: Capital, Growth, Impact, Real Estate, Market Solutions and TPG Angelo Gordon. Funds managed and/or advised by affiliates of TPG hold interests in a number of companies active in a variety of industries around the world. The target, Zembl, is an integrated energy services partner to Australian business customers. It operates in the electricity brokerage industry as an intermediary between energy customers and energy retailers and metering providers. Zembl does not itself supply energy.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: - there is no horizontal overlap between TPG (including its controlled portfolio companies) and Zembl in the supply of electricity brokerage services in Australia - there are alternative suppliers of electricity brokerage services in Australia - there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary

	conduct, bundling or tying of products or services post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**